

5.	30-2024-01413861 City of Laguna s. Hong	Motion to Appoint Receiver Plaintiff/Petitioner City of Laguna Beach (“Plaintiff” or the “City”) petitions the Court for an order appointing GS Strategies, Inc. as receiver to rehabilitate the real property located at 988 Noria Street pursuant to Health & Safety Code section 17980.7. Alternatively, the City requests a preliminary injunction ordering Defendant/Respondent Luis Hong (“Defendant”) to bring the property up to code within 60 days. A receivership is a harsh, time-consuming, expensive and potentially unjust remedy and thus is available only where a more “delicate,” alternative remedy (i.e., injunction, writ of possession, attachment, provisional director, lis pendens, and other enforcement of judgment mechanisms) is inadequate. (See <i>City & County of San Francisco v. Daley</i> (1993) 16 Cal.App.4th 734, 745; <i>Medipro Med. Staffing LLC v. Certified Nursing Registry, Inc.</i> (2021) 60 Cal.App.5th 622, 628-629.) Since a receivership is an equitable remedy, the equitable considerations in an injunction proceeding apply—i.e., there must be a showing of irreparable injury and inadequacy of other remedies. (<i>Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.</i> (1953) 116 Cal.App.2d 869, 872.) On 4/4/23, a Notice of Violation for Unpermitted Construction/Maintenance Issues was issued and mailed to Defendant via first class mail. (Declaration of Nicole Bovey ¶ 10.) Two more Notices of Violations were issued in May and June of 2023. (Id. ¶¶ 11-12.) The property was inspected on 4/18/24 and a Legal Notice and Order to Repair or Abate was issued on 5/6/24, directing Defendant to repair unsafe conditions such as the rotted and structurally unsound deck, unpermitted electrical and plumbing modifications, unpermitted bathroom and kitchen construction, dilapidated interior walls, and signs of possible mold. (Id. ¶¶ 15-16.) As of the date this Motion was filed, the dangerous substandard conditions at the property continued to exist. (Id. ¶ 25.) Defendant purchased the property with the intention of remodeling and selling it. (Declaration of Luis Hong ¶ 5.) When he discovered that his intended repairs would require permitting, he thought it may be more beneficial to significantly remodel the property prior to selling it. (Id. ¶ 7.) Around that time, he fell ill and spent time in the hospital and his mother also fell ill in late 2023, requiring him to spend extended periods of time abroad. (Id. ¶¶ 8-9.) He then decided to try and sell the property in April 2024 instead of doing any remodel because he decided the project was too much to deal with. (Id. ¶ 10.) Since being served with the Complaint, he has communicated with Ms. Bovey regarding the work required to bring the property up to code and has taken some action, such as removing a satellite dish and adding padlocks to access doors. (Id. ¶¶ 11-25.) Further, though no formal plans have been submitted, Defendant has provided the City with three sets of plans for review. (Declaration of Kate Kazama ¶¶ 5, 7.) Under the current circumstances, it appears that Defendant is taking concrete steps to work with the City to address the hazard concerns with the property. While the City contends that Defendant has been aware of the nuisance conditions since 2021, the first notice of violation was not issued until 2023. Defendant has certainly delayed in addressing the City’s concerns. However, the Court notes that some health issues contributed to that delay and it seems that he is now working with the City in good faith. In this light, the Court finds a receiver, which is “harsh,” time-consuming, and expensive, to be unwarranted at this time.
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		Instead, the Court finds the City’s alternative request for a preliminary injunction ordering Defendant to correct the violations to be more appropriate. In cases involving a legislatively declared nuisance per se, an injunction may issue without proof of irreparable injury. (<i>People ex rel. Dept. Pub. Works v. Adco Advertisers</i> (1973) 35 Cal.App.3d 507, 511-512.) “[T]o be considered a nuisance per se the object, substance, activity or circumstance at issue must be expressly declared to be a nuisance by its very existence by some applicable law. [Citation.] [W]here the law expressly declares something to be a nuisance, then no inquiry beyond its existence need be made. [Citation.] Nuisances per se are so regarded because no proof is required, beyond the actual fact of their existence, to establish the nuisance. [Citation.]” (<i>City of Claremont v. Kruse</i> (2009) 177 Cal.App.4th 1153, 1163-1164, internal quotations omitted.) The Laguna Beach Municipal Code section 7.24.020(a) defines a public nuisance as, among other things, any use or condition of property that poses a danger to human life or is unsafe or detrimental to the public health, safety, or welfare. Therefore, the noted substandard conditions which are dangerous, such as a rotted and structurally unsound deck, unpermitted and illegal electrical and other construction, and exposed electrical switches and outlets, constitute a public nuisance per se. Defendant does not dispute this point. In light of the above, the City’s request for a preliminary injunction is GRANTED and Defendant is ORDERED to bring the subject property into compliance with the Laguna Beach Municipal Code within 90 days from the date of this order. City to give notice.
7.	30-2023-01329772 Jing vs. Di Luzio	Motion for Sanctions Based on applicable law, Defendant Andrew Diluzio’s (“Defendant”) Motion for Sanctions is DENIED. Defendant seeks monetary sanctions pursuant to CCP §128.7 against Plaintiffs and their counsel on the grounds that the claims in the Complaint were not warranted under existing law, nor under a good-faith argument that the law should be changed or extended. By presenting a pleading to the court, an attorney or unrepresented party is certifying that, to the best of the person’s knowledge, information and belief, formed after an inquiry reasonable under the circumstances that all of the following conditions are met: (1) it is not being presented primarily for an improper purpose; (2) the claims, defenses, or other legal contentions are warranted by existing law or by a nonfrivolous argument for the extension, modification or reversal of existing law or the establishment of new law; (3) the allegations and other factual contentions have evidentiary support, or if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery; and